

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
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United States Court of Appeals for the Fourth Circuit

Mara Ellison v. Officer Nolan Rusk

No. SYN-CA4-26-CV-4104-CF-NEVER-OCCURRED

Officer Nolan Rusk's Motion to Stay Mandate Pending Certiorari — Denial Path

Filed July 15, 2026

Officer Nolan Rusk moves under Federal Rule of Appellate Procedure 41(d) to stay the mandate while he prepares a petition for a writ of certiorari. This route proceeds from the panel's June 30 judgment dismissing Rusk's factual-sufficiency target but affirming the denial of qualified immunity on the district court's plaintiff-favorable assumptions. Rusk did not seek rehearing by July 14. Without a stay motion or contrary order, mandate issuance would be expected on July 21.

The contemplated petition would ask whether precedent concerning repeated electrical force against stationary resistance clearly establishes that one contact-mode cycle violates the Fourth Amendment when a subject is actively pulling during an officer's attempt to gain control. Rusk contends that the panel defined the right too generally and gave insufficient effect to the Supreme Court's specificity analysis in *Zorn v. Linton*.

This motion is served before the scheduled mandate. Rusk acknowledges that a filing does not establish entitlement to continued withholding: he must identify a substantial certiorari question and good cause. He asks that the Court preserve the appellate posture for ninety days or until an earlier petition decision, subject to the notice requirements in Rule 41(d)(2).

Proposed Question Presented

The petition would present the following question: whether an officer is denied qualified immunity based on circuit precedent involving materially greater or differently timed electrical force when the challenged conduct consists of one five-second drive-stun application during physical resistance and before handcuffing, even though the assumed person posed no immediate danger.

Rusk recognizes that this wording includes the plaintiff-favorable assumptions required by the collateral-order boundary. He does not propose asking the Supreme Court to decide whether Ellison struck him, reached toward his belt, or only recoiled from pain. Those historical matters remain disputed and were outside this Court's interlocutory jurisdiction.

The legal dispute concerns fair notice. *Estate of Armstrong v. Village of Pinehurst* condemned five drive-stun deployments over approximately two minutes against a stationary mental-health subject holding a post. *Yates v. Terry* and *Meyers v. Baltimore County* involved repeated force or force continuing after compliance or control. Rusk used one cycle while Ellison was moving and stopped before the handcuffs were secured.

The panel treated *Armstrong's* prospective explanation—electrical force requires an immediate safety risk—as sufficiently specific. Rusk would argue that *Zorn* forbids reliance on a general proportionality relationship when earlier holdings do not address similar actions in similar circumstances. The proposed petition would not ask whether welfare seizures receive less constitutional protection; it would address the notice required before imposing individual damages.

Claimed Substantiality

Rusk submits that the question is substantial because qualified immunity protects against trial, not merely an adverse damages award. Once the mandate returns, the district court may schedule a jury trial about the obstructed interval. If Supreme Court review later establishes immunity, the burdens that the collateral-order doctrine exists to prevent will already have begun.

The panel's opinion applies binding decisions rather than declaring a circuit conflict. Even so, Rusk contends that its method conflicts with the Supreme Court's repeated insistence on particularity. The opinion took a categorical sentence from *Armstrong* and applied it despite differences in the number of cycles, duration, the subject's movement, and whether force occurred before control. According to Rusk, that is the same level-of-generality error corrected in *Zorn*.

The question could recur in cases involving conducted-energy devices and nonviolent resistance. Officers must decide in seconds whether movement is merely noncompliant or presents a developing risk. A clear notice standard affects municipal training as well as damages litigation. Rusk asserts that the case supplies a clean legal vehicle because the district court stated its assumed facts and the panel dismissed all fact-review arguments.

Rusk does not identify another circuit decision involving this exact single-cycle sequence. He instead relies on the asserted tension between the panel's use of *Armstrong* and current Supreme Court methodology. He submits that a direct split is not an indispensable prerequisite to a substantial question under Rule 41(d).

The Role of *Zorn*

Zorn was decided in March 2026, after the February 2025 encounter but before the panel ruled. Rusk does not claim that it informed his conduct at the time. He invokes it as the controlling analytic direction for deciding today whether older precedent gave fair warning.

The Supreme Court held that a general rule against gratuitous pain compliance did not clearly establish the unlawfulness of a warned wristlock used to move a resistant protester. It required a prior decision holding materially similar conduct unconstitutional and treated warnings, the routine nature of the technique, and resistance as important circumstances. Rusk maintains that one drive-stun cycle during pulling likewise requires a closer analogue than repeated electrical force against stationary resistance.

There are substantial differences. Ellison was a welfare-check subject, not a deliberate trespasser; the device imposed electrical pain rather than wrist pressure alone; and the assumed facts exclude immediate danger. The panel relied on those distinctions from *Zorn*. Rusk's proposed petition would ask whether they bear on the constitutional merits but still leave the fair-notice cases too dissimilar.

Rusk acknowledges that *Zorn* did not overrule *Armstrong*. His position is that *Armstrong* must be read at the level of its holding and facts rather than its broadest prospective language. He proposes to argue that the panel's contrary reading allows circuit generalities to do work the Supreme Court reserves for particularized precedent.

Good Cause Claimed

Good cause exists, Rusk argues, because mandate issuance will return a live individual-capacity claim for trial preparation. Depositions are complete and the district record is developed, so a schedule could advance quickly. Counsel would have to prepare witnesses, video presentations, motions in limine, and jury instructions while a petition challenging the obligation to stand trial is under review.

The requested stay would preserve the current allocation of authority without changing the merits judgment. It would not enter summary judgment for Rusk, decide the hidden movements, or prevent Ellison from preparing her own petition response. Its principal effect would be to postpone remand until the Supreme Court filing decision becomes known.

Rusk also cites the risk that competing fact descriptions will make later appellate relief practically incomplete. A jury verdict could resolve the immunity predicate before the Supreme Court considers whether a trial should have occurred. Avoiding that sequence, he says, is central to the defense's nature.

The case has already proceeded for more than a year, however, and Rusk does not identify an imminent trial date. The district court can manage its calendar after remand. Rusk acknowledges those facts but submits that Rule 41(d) does not require proof that trial will begin within days. He asks the Court to treat foreseeable litigation burdens and the clean legal posture together as sufficient cause.

Duration, Notice, and Security

Rusk requests a stay for ninety days from entry of an order granting this motion. If he files a certiorari petition within that period and gives the circuit clerk timely written notice, he asks that the stay continue until the Supreme Court's final disposition as Rule 41(d)(2)(B) permits. If he obtains an extension of the filing deadline, he will transmit the extension order promptly.

If Rusk elects not to petition, he will notify the clerk without waiting for the ninety-day period to expire. He accepts that the Court may dissolve the stay when its stated predicate disappears. Silence will not be treated as a request for an implied extension.

No bond should be required. The appellate judgment affirms denial of immunity but awards no immediate monetary relief, and withholding the mandate would not transfer property or suspend an injunction protecting Ellison. Her claimed harm is delay in reaching trial rather than an identifiable amount that security could replace.

Counsel informed Ellison's attorney before filing. Ellison opposes the motion and intends to respond that the proposed question is fact-bound, *Armstrong* gave precise notice, and routine district scheduling does not establish good cause. The electronic filing certificate confirms same-day service of this motion and its attachments.

The Requested Stay Does Not Reopen Facts

Rusk preserves his testimony that Ellison struck his forearm and moved toward duty equipment. He understands that those assertions cannot support the present legal motion. The proposed petition, like this stay request, takes Ellison's supported version as assumed and asks only whether earlier law clearly prohibited the described response.

The body-camera obstruction supplies procedural context rather than a certiorari fact question. It explains why the district court found a dispute and why this Court separated factual sufficiency from legal immunity. Rusk does not ask the Supreme Court to enhance images, hear testimony, or choose credibility. The assumed-fact posture is fixed for purposes of the proposed review.

That posture distinguishes this request from a delay tactic aimed at relitigating summary judgment. If certiorari is denied, the jury may decide what occurred. If review is granted and immunity recognized on the assumptions, no fact trial will be necessary. Either outcome follows from a legal question capable of resolution without revisiting the record.

Rusk nevertheless notes that the unusual combination of one cycle, active pulling, contact mode, and incomplete video may limit the decision's recurrence. He submits that the Court should evaluate substantiality based on the governing specificity principle rather than the number of future cases with identical evidence. The question is whether existing precedent can clearly establish a materially different force episode.

Requested Order

Officer Rusk asks the Court to stay issuance of the mandate for no more than ninety days while he prepares a petition for certiorari. A grant should require written notice if a petition is filed, an extension is obtained, or he abandons the effort. It should state that no security is required and that the panel may dissolve the stay on a material change.

In the alternative, Rusk requests a shorter period sufficient to complete final authorization and petition preparation. He does not ask the panel to reconsider its June 30 opinion through this motion, suspend a mandate already issued, or decide that the Supreme Court will grant review. The relief concerns appellate finality only.

The Clerk should continue withholding the mandate while this timely motion is pending. If the Court denies relief, Rule 41(b) ordinarily measures issuance seven days after the denial unless the Court expressly shortens or extends that interval. Rusk asks that any denial order preserve the default period so he may evaluate emergency relief.

Counsel certifies that the motion was electronically filed on July 15, 2026, served on counsel for Mara Ellison, and authorized by Officer Rusk. All facts concerning the proposed petition are stated on counsel's present information. No certiorari petition has yet been filed, and no application for an extension has been submitted.

Respectfully submitted for appellant Officer Nolan Rusk.